

STATE OF NEW YORK

4481--A

2025-2026 Regular Sessions

IN ASSEMBLY

February 4, 2025

Introduced by M. of A. JONES, LEVENBERG -- read once and referred to the Committee on Transportation -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the transportation law, in relation to establishing the New York road salt reduction council and the New York road salt reduction advisory committee

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. The transportation law is amended by adding a new article 23 to read as follows:

ARTICLE 23

NEW YORK ROAD SALT REDUCTION PROGRAM

Section 500. Legislative findings.

501. Definitions.

502. New York road salt reduction council.

503. New York road salt reduction advisory committee.

§ 500. Legislative findings. The legislature finds that the report of the Adirondack road salt reduction task force complies with the Randy Preston road salt reduction act, and that its recommendations should be implemented to protect public health and the environment from contamination by road salt. The legislature further finds that effective implementation requires interagency cooperation and coordination, attention extending beyond the boundaries of the Adirondack park. A mechanism for such does not currently exist but should be created. The legislature further recognizes that both state and local agencies need the expertise and experience of scientists, engineers, nongovernmental institutions advocating for clean water, highway users, and others in developing solutions to the problems posed by the need to control ice and snow for the safety of the traveling public without contaminating drinking water and impairing natural resources supporting life, a sound economy, and healthful recreation. The legislature also finds that the public has a

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

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1 right to know about the purchase, storage, and use of road salt by
2 governmental entities and the effects thereof.

3 § 501. Definitions. As used in this article the following terms shall
4 have the following meanings:

5 1. "Advisory committee" means the New York road salt reduction advi-
6 sory committee established by section five hundred three of this arti-
7 cle.

8 2. "Council" means the New York salt reduction council established by
9 section five hundred two of this article.

10 3. "Pilot program" means the road salt reduction pilot studies
11 described in the Report.

12 4. "Report" means the two thousand twenty-three report of the task
13 force to the governor and legislature, including its recommendations and
14 background and technical appendix.

15 5. "Task force" means the Adirondack road salt reduction task force
16 established under the Randy Preston road salt reduction act.

17 § 502. New York road salt reduction council. 1. There is hereby estab-
18 lished the New York road salt reduction council. Such council shall
19 consist of a total of fifteen members and shall include:

20 (a) the commissioner;

21 (b) the commissioner of environmental conservation;

22 (c) the commissioner of health;

23 (d) the chairperson of the New York state thruway authority;

24 (e) the commissioner of the New York city department of environmental
25 protection;

26 (f) the presidents of the New York state association of counties, New
27 York association of towns and the New York conference of mayors;

28 (g) three appointees upon recommendation of the senate majority;

29 (h) three appointees upon recommendation of the assembly majority; and

30 (i) the chair of the road salt reduction advisory committee.

31 With the exception of the chair of the road salt reduction advisory
32 committee and any members appointed by the legislature, all other
33 members may appoint a designee to serve on their behalf.

34 2. The commissioner and the commissioner of environmental conservation
35 or their designees shall serve as joint chairs of the council.

36 3. The members of the council shall include individuals with expertise
37 in the science of road salt contamination and the best practices of road
38 management. Council members shall receive no compensation for their
39 services but shall be reimbursed for actual and necessary expenses
40 incurred in the performance of their duties, to the extent funds are
41 appropriated for such purpose. Each member of the council shall be enti-
42 tled to one vote. Any approvals or adoptions of recommendations by the
43 council shall require a supermajority of its members. No action may be
44 taken by the council unless there is a quorum, which shall be a majority
45 of the members of the council. Any vacancies on the council shall be
46 filled in the manner provided for the initial appointment. The council
47 shall meet at least quarterly.

48 4. The council shall, without limitation:

49 (a) From time to time assess the nature, scope and magnitude of the
50 environmental, ecological, agricultural, economic, recreational, and
51 social impacts caused by the use of road salt in the state;

52 (b) By January first, two thousand twenty-eight, recommend quantifi-
53 able limits in regulation for road salt use that are protective of water
54 quality standards and drinking water maximum contaminant levels, while
55 preserving acceptable levels of service for the driving public;

1 (c) By January first, two thousand twenty-seven, recommend incentives
2 for state and local adoption of best management practices for minimum
3 salt use during winter road maintenance;

4 (d) Recommend regulations for the establishment of scientifically
5 defensible drinking water maximum contaminant levels and water quality
6 standards that protect freshwater ecology and public health, to be
7 adopted by the department of environmental conservation and department
8 of health, respectively;

9 (e) Recommend legislation or regulations for state agencies to under-
10 take to comply with quantifiable limits for road salt use as proposed
11 under paragraph (b) of this subdivision;

12 (f) Recommend budget allocations and/or legislation necessary to
13 reduce road salt use while maintaining acceptable levels of service for
14 the driving public;

15 (g) From time to time make a record of actions and publish said record
16 in the environmental notice bulletin, to be taken by members of the
17 council, state and local governments, and the public to implement the
18 recommendations of the council in the report;

19 (h) Monitor the progress of the Adirondack road salt reduction pilot
20 programs, determine what follow up steps are in the public interest to
21 implement recommendations statewide, and recommend additional pilot
22 programs in other regions of the state; and

23 (i) Regularly share data, including that provided by the advisory
24 committee, among members of the council, state and local governments,
25 the advisory committee, and the public to inform decision-making, reduce
26 inconsistent and redundant actions, and identify problems requiring
27 coordinated actions.

28 5. The council shall prepare an annual report describing its activ-
29 ities during the preceding twelve months. Such report shall be submitted
30 to the governor and legislature and made available to the public,
31 through the environmental notice bulletin.

32 § 503. New York road salt reduction advisory committee. 1. There is
33 hereby established the New York road salt reduction advisory committee
34 that is comprised of individuals representing nongovernmental organiza-
35 tions with expertise in public health and environmental impacts of road
36 salt use, expertise in data collection and analysis of water quality
37 standards or drinking water maximum contaminant levels, or technical
38 proficiency in safely reducing overall road salt use. Such advisory
39 committee shall have up to twenty-five members, with up to seven members
40 selected by the commissioner and commissioners of environmental conser-
41 vation and health, up to six members selected by the senate majority, up
42 to six members selected by the assembly majority, up to three members
43 selected by the senate minority and up to three members selected by the
44 assembly minority, with at least one member from each of the following:

45 (a) Adirondack watershed institute at Paul Smith's college;

46 (b) College of agriculture and life sciences of Cornell university;

47 (c) Riverkeeper;

48 (d) Lake George association;

49 (e) any New York based branch of the American Automobile Association;

50 (f) Snow and ice management association;

51 (g) the New York section of the American water works association;

52 (h) the New York state drinking water quality council;

53 (i) Cary institute;

54 (j) New York state federation of lake associations; and

55 (k) Adirondack council.

1 2. Promptly upon the selection of at least twelve members to the advisory
2 committee, the commissioner and the commissioner of environmental
3 conservation shall convene a meeting of the advisory committee at which
4 the advisory committee by majority vote of those present shall select a
5 chair from among the members to preside over the meeting and future
6 meetings. Thereafter, meetings may be held as shall be determined by the
7 chair or upon the written request of at least five members. Any member
8 can attend advisory committee meetings in person or by means of communi-
9 cations equipment allowing all persons participating to hear each other
10 at the same time. A majority of the selected and then serving members
11 shall constitute a quorum for the conduct of business at advisory
12 committee meetings.

13 3. The advisory committee shall provide information, advice, and guid-
14 ance to the council concerning the use, management, and effects of road
15 salt on public highways including, but not limited to, implementing the
16 recommendations of the council, conducting the pilot program, new rele-
17 vant scientific data and findings, changes in snow and ice management
18 technologies, and factors relating to the appropriate balance between
19 maintaining safe roads and otherwise protecting clean drinking water and
20 other natural resources from contamination.

21 4. The members of the advisory committee shall serve without compen-
22 sation, except members shall be allowed their necessary and actual
23 expenses incurred in the performance of their duties under this section.

24 § 2. This act shall take effect immediately.